

HOUSE BILL 434

By Raper

AN ACT to amend Tennessee Code Annotated, Title 3;
Title 4; Title 5; Title 6; Title 7; Title 8; Title 9 and
Title 12, relative to public officials.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 50, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Public facility" means real property owned by, or the acquisition, construction, maintenance, or operation of which is funded in whole or in part by, this state or a subdivision of this state; and

(2) "Public official" means a person elected to local public office or any person appointed or employed by a local government.

(b) A public facility shall not be named or designated for an individual public official during the public official's term of office or during the two-year period immediately following the public official's departure from office unless private funds are used to cover the costs of naming or designating the public facility. The two-year limitation in this subsection (b) does not apply if the public official is deceased or an honorably discharged veteran of the United States armed forces.

(c) A public official shall not make charitable donations in the name of the public official if the public official is using public funds. Such donations must be attributed to the public entity from which the funds originated.

(d) A public facility shall not be named for a public official who has been convicted of a felony or a crime of moral turpitude.

(e) A public facility that has been named for a person who was not a public official at the time of the naming may continue to bear that name if the person subsequently becomes a public official.

(f) A public facility named for a public official prior to the effective date of this act may continue to bear the name of that public official.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.